

On May 11, 2026, Defendant served a Notice of Taking the Videotaped Deposition of Plaintiff Daniel P. Paquin (“Deposition Notice”). (Decl. of Petrick, ¶ 8; Ex. A.) On June 11, 2026, Plaintiff served objections. (Id at ¶ 9; Ex. B.) Counsel asserts that she advised Plaintiff’s counsel that she would be forced to file a motion to compel if Plaintiff did not appear. (Id at ¶ 9.) However, there is no evidence that Defendant attempted to resolve the issues raised by Plaintiff’s objection. Nor does counsel indicate whether any additional deposition dates were provided. On June 11, 2026, Defendant took a notice of non-appearance. (Id at ¶ 11.)

Counsel for Plaintiff states that on July 15, 2026, prior to the filing of the present Motion on July 21, he sent a meet and confer letter to Defendant’s counsel advising him that Plaintiff would be available for deposition in early August. (Decl. of Zucker, ¶ 4; Ex. 1.) This correspondence was not mentioned in defense counsel’s declaration. Again, on July 24, 2026, Plaintiff’s counsel stated that the Motion was unnecessary because he had already agreed to produce Plaintiff for deposition in August. (Id at ¶ 5; Ex. B.) Plaintiff contends that defense counsel’s response to the July 24 letter indicates that the Motion was filed in retaliation for Plaintiff’s refusal to stipulate to a trial continuance. (Id.) Overall, the meet and confer in this case appears to have been insufficient.

Sanctions:

“If a motion [to compel deposition] is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent...unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §§2025.450(g)(1).) A responding party’s untimely response to discover does not divest the trial court of the authority to hear a motion to compel. (*Sinaiiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 407.)

Here, moving party was not successful. Sanctions are denied.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501786	PENICK VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES, SET ONE, BY ARLENE PENICK

Tentative Ruling: Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick (“Plaintiff”) slipped and fell at Defendant Eisenhower Medical Center (“Defendant”) causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to form interrogatories, set one from Defendant, which were served on January 8, 2026. Plaintiff’s counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant's counsel's office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client's execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant's late responses were so poor that they required a 24 page meet and confer letter and as such sanctions are appropriate.

Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

The real issue appears to be sanctions. For interrogatories, section 2030.290(c) provides that "the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Here, defense counsel requested a continuance to May 6, Plaintiff's counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted.

However, Plaintiff's request for \$2,565 is too much for this straightforward motion. Reduced to \$960.00 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505858	DOE K.C., AN INDIVIDUAL VS DOE 1, A PUBLIC ENTITY	DEMURRER ON 1ST AMENDED COMPLAINT OF JOHN DOE K.C., AN INDIVIDUAL

Tentative Ruling: Overruled.

Responding party to provide notice pursuant to CCP 1019.5.